

Court No. - 3

Case :- WRIT - C No. - 17205 of 2021

Petitioner :- Moseen Ansari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Let notice of the petition be served upon Sri Kartikaye Saran, learned counsel for the respondent no.5.

Put up as fresh on 4.8.2021 showing the name of Sri Kartikaye Saran as counsel for the respondent.

Order Date :- 28.7.2021

M. Tariq

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard Sri Mukesh Kumar Pandey, learned counsel holding brief of Sri Shams Uz Zaman, learned counsel for the petitioner and Sri Kartikeya Saran, learned counsel for respondent nos.4 and 5 and learned Standing Counsel for the State.

2. At the outset, learned counsel for the petitioner states that he will take care while drafting the petition in future as to the spacing, margin and also as to completeness of the prayer made.

3. At present, the petitioner is challenging the demand notice dated 02.06.2021 raising demand of Rs.1,01,674/-. The petitioner further appears to have disputed the demand on 05.06.2021 by filing application before respondent no.5 seeking correction in terms of Clause 6.5(b)(ii) of the UP Electricity Supply Code, 2005.

4. Accordingly, the writ petition is **disposed of** with a direction that in case the petitioner files a fresh application along with deposit of Rs.20,000/-, in terms of the principle contained in Clause 6.5(b)(ii) of the aforesaid Code, within a period of two weeks from today, before respondent no.5 (Executive Engineer), the said respondent shall proceed to hear and decide that application seeking correction in the final assessment dated 02.06.2021. The said authority shall hear that application and pass a proper order within a period of two weeks thereafter.

5. For a period of one month from today or till disposal of the said correction application filed by the petitioner, no coercive measure shall be adopted against the petitioner, subject to the compliance being made to the terms of this order.

Order Date :- 4.8.2021

S.Chaurasia